

		(2) Onward Brands, LLC, Registered Agent for Service, Corporate Service Bureau Inc., 614 N. Dupont Hwy., Suite 210, Dover, DE 19901
6	30-2026-01594403 Ramanathan vs. Gordy	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 11). The Court takes Judicial Notice of the Court Docket and Order to Serve Summons by Posting (ROA 21). Defendants indicate they received a copy of the summons and complaint on 9/3/2026 at their doorstep. No proof of service of summons has been filed with this Court. On 9/17/2026, this Court signed an Order to Serve Summons by Posting after a declaration of attempted service on the Defendant by registered process server David Cunningham (Orange County #1895). The Court GRANTS the Defendants' Motion to Quash Service of Summons. The Court Clerk is to send notice of the Court's ruling.
7	30-2026-01592557 Kwok vs. Zabek	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 13) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
8	30-2026-01588949 22751 EL Prado LLC vs. Triplett	The Court has read and considered the Defendants' Demurrer to the Complaint (ROA 31) and Request for Judicial Notice (ROA 27). The Court takes Judicial Notice that on 9/18/2026 the Plaintiff filed an Amended Complaint (ROA 36). California Code of Civil Procedure §472(a) states: "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is <i>filed and served</i> no later than the date for filing an opposition to the demurrer or motion to strike." (emphasis added) Although the Amended Complaint has been filed with the Court, there is no evidence filed with this court that the Amended Complaint has been served on the Defendants. Because the Amended Complaint was not served in compliance with California Code of Civil Procedure §472(a), the Court finds that the Amended Complaint was untimely, and the Demurrer to the Complaint is not moot. The Court grants the Defendant's Request for Judicial Notice of the Statement of Decision filed 6/15/2026 in 30-2026-01558498-CL-UD-CJC

and UD-110 from 30-2026-01558498-CL-UD-CJC filed 7/27/2026. The Court also takes Judicial Notice of the Complaint (ROA 2).

Defendants argue collateral estoppel and res judicata, as the Plaintiff previously sued the Defendants for an unlawful detainer in 30-2026-01558498-CL-UD-CJC in Department C66 for nonpayment of rent regarding a notice to pay rent or quit for the time period of 10/2025-2/2026, and the Court in that case found judgment for the Defendants due to an overstatement of rent. The 30 day Notice to Pay Rent or Quit attached to the Complaint seeks rent from November 2025 to June 2026.

“Claim preclusion prevents relitigation of entire causes of action. (*Mycogen, supra* 28 Cal.4th at p. 896; see also *id.*, at p. 904 [discussing “primary right theory,” which defines the scope of a cause of action].) Claim preclusion applies only when “a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.” [citation] Issue preclusion, by contrast, prevents “relitigation of previously decided issues,” rather than causes of action as a whole. (*Ibid.*) It applies only “(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party.” [citation]” (*Samara v. Matar* (2018) 5 Cal. 5th 322, 326-327.)

“An unlawful detainer judgment is given res judicata effect only as to issues which were actually, fully, and fairly litigated in that proceeding. (*Vella v. Hudgins, supra*, 20 Cal.3d at pp. 255-57; *Pelletier v. Alameda Yacht Harbor* (1986) 188 Cal.App.3d 1551, 1557, 230 Cal. Rptr. 253.) Here, the prior unlawful detainer action resolved by judgment the principal issue of Archstone's entitlement to immediate possession based upon the allegation that Phillips forfeited the lease by non-payment of rent as of the date that action was filed — April 19, 2013, The present action alleged breaches of the obligation to pay rent occurring from April, 2013, through and including October, 2013. Thus, the pending action asserts an immediate right to possession for breaches of the lease which were not the subject of the prior unlawful detainer action. That issue was not necessarily litigated in the prior unlawful detainer action. Accordingly, res judicata does not bar the pending action.” (*Archstone Simi Valley, LLC v. Phillips* (2015) 2015 Cal.Super.LEXIS 14772, *9.)

“Rental damages in an unlawful detainer action are limited to those accruing during the tenant's wrongful detention of the premises; they may not include future rental damages. (*Ibid.*) Landlords are forbidden to bring separate unlawful detainer actions each time the tenant fails to pay installment rent when due by virtue of the doctrine against splitting causes of action. (*Lekse v. Municipal Court* (1982) 138 Cal.App.3d 188, 193, 187 Cal. Rptr. 698.) They are likewise prohibited by principles of res judicata from obtaining rent damages in a subsequent unlawful detainer proceeding which accrued in a prior unsuccessful unlawful detainer proceeding. (*Hudec v. Robertson, supra*, 210 Cal.App.3d at pp. 1162-63.2 Therefore, to the extent that the pending unlawful detainer proceeding seeks rental damages overlapping with those sought in the prior unlawful detainer proceeding — it appears that involves rent due for the month of April, 2013 — such damages are barred by the

		doctrine of res judicata and the prohibition against splitting causes of action.” (<i>Archstone Simi Valley, LLC v. Phillips</i> (2015) 2015 Cal.Super.LEXIS 14772, *10-11.) Plaintiff is seeking rent for November 2025, December 2025, January 2026, and February 2026, which were also sought in 30-2026-01558498-CL-UD-CJC, and Judge Carillo-Orellana ultimately found for the Defendant in that action regarding those same months. While the damages sought in this pending action are to a limited extent barred by res judicata, the pending action is otherwise not barred by the prior unlawful detainer judgment in Defendants’ favor. Therefore, the Court OVERRULES the Demurrer. Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court’s ruling.
18	30-2026-01594893 UDR Eight80 I LP vs. Reynoso	The Court has read and considered the Defendants Motion to Quash Service (ROA 15) and Proof of Service by Mail (ROA 22). The Court takes Judicial Notice of the Proofs of Service-Personal (ROA 9 & 11) and Proof of Service – Unnamed Occupants (ROA 13). California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Registered process server Frank Harrigan (Orange County #1530) personally served Juan Reynoso, with description, on 9/8/2026 at 6:14 PM, and Brenda Catalan, with description, on 9/4/2026 at 10:42 AM. Defendants provide no evidence to support their claim that service was not proper; therefore, they fail to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendants are ordered to file a responsive pleading within 5 calendar days. The Plaintiff is ordered to provide notice of the Court’s ruling.